

RURAL RULINGS

The Government's efforts to provide speedy justice to the rural masses are finally showing positive results after four years

It's rustic justice at its best in the village square. With rural courts gaining a foothold four years after being set up, easy access to speedy and affordable justice in rural areas is finally becoming a reality.

Armed with a modest mandate of minor civil and criminal cases, over 1,500 such courts aid villagers in sorting out their common legal tangles sans the hassles. A seven-member court covering a dozen gram panchayats meets twice a week and hears the complainants' cases. It's a throwback to the days when panchayats used to adjudicate on disputes with binding verdicts. Today's rural courts aim to bring about a compromise between the disputing parties. "Often, villagers involved in a minor scuffle make up after exchanging apologies. It spares them unending visits to a conventional court where they would have been tried for exchanging blows under Section 323 of IPC," says Ashok Kumar Jain, head of the Kotari village court in Sehore district.

Conciliation is the cornerstone of the Madhya Pradesh Gram Nyayalaya Act 1996 as it ends acrimony. In Kotari, most of the 130 cases have ended in compromise, unlike civil cases, where the courts hear and determine suits for recovery of amounts up to Rs 1,000. In criminal matters, they hear a variety of cases, including unauthorised occupation of property, common scuffles and violence under Section 323 apart from some other sections of IPC. As per the

last available state-wide figures till 2006, 1,576 village courts in non-tribal development blocks of the state recorded over 1.8 lakh cases, of which 93,000 were disposed—meaning less cases before regular courts. Since there is only a provision of revision of a verdict in the civil judge class and judicial magistrate class I for a review of

EASY JUSTICE: A villager pleads his case in Kotari village



the procedural, and not the substantive part of the judgement, the cases invariably end at the village level. Levying fines of up to Rs 500, these courts collected over Rs 1.6 crore between 2003 and 2006.

There's a hidden upshot of the village courts that goes far beyond their mere legal utility. With gradual recognition as a dispute-resolving mechanism, many of these courts resolve issues that go beyond their briefs, like marital discords, where

couples are brought to an understanding. But there are setbacks, too. In Sehore alone, only four of the dozen village courts are fully functional. Given their semi-formal nature despite statutory backing, courts rely heavily on the interest shown by members who are paid a modest Rs 100 as honorarium per seating. Since the court members are appointed by the state government on unanimous reference of the Janpad panchayat concerned, it's the political appointees with their own agendas who make it. While the damage is minimised as the members are barred from having any political allegiances or holding panchayat office, political interference makes courts a blunt instrument in some re-

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gions like Bundelkhand, Baghelkhand and Gwalior-Chambal where political and caste conflicts abound. Says Balraj Chauhan, director, National Law Institute University, Bhopal, "Where caste panchayats have sharpened conflicts between communities, rural courts are a non-starter."

Despite constraints, rural courts may pave the way in re-establishing the confidence of masses in the judiciary particularly in the wake of repeated lynching of thieves, by the public, in Bihar. The proposed Gram Nyayalaya Bill 2007, yet to be tabled in Parliament, can speed up easy justice in rural areas and prevent further mob-justice attempts.

by Ambresh Mishra



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DR BALRAJ CHAUHAN, DIRECTOR, NLIU,